

TENTATIVE RULINGS for LAW and MOTION

June 5, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eight	(530) 406-6927
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Peterson v. City of Red Bluff et al.**
Case No. CV2025-1674

Hearing Date: **June 5, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Cody Strock’s motion for attorneys’ fees and costs is **GRANTED IN PART** in the amount of **\$20,235.00**, in attorneys’ fees and **\$674.78** in costs. (Code Civ. Proc., § 425.16, subd. (c)(1).) The Court finds that the proffered hourly rates claimed by defendant’s counsel are reasonable. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004 [“[t]he reasonable hourly rate is that prevailing in the community for similar work”]; Camy Decl., ¶ 2; Horan Decl., ¶ 2; Rose Decl., ¶ 2; Mann Decl., ¶ 3.) Additionally, defendant has established that the hours expended by defendant’s counsel in connection with the special motion to strike and the motion for attorneys’ fees and costs are reasonable. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133 [“an award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16”]; Camy Decl., ¶ 2; Horan Decl., ¶ 2; Rose Decl., ¶ 2; Mann Decl., ¶ 3; Camy Decl. ISO reply, ¶ 2; Mann Decl. ISO reply, ¶ 5.) However, the Court declines to award attorneys’ fees and costs for the hours expended by defendant’s counsel in connection with the demurrer. (Code Civ. Proc., § 425.16, subd. (c)(1); *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 433 [“the award of fees is designed to ‘reimburs[e] the prevailing defendant for expenses incurred *in extracting* herself from a baseless lawsuit’. . . rather than to reimburse the defendant for all expenses incurred *in* the baseless lawsuit”]; *Jackson v. Yarbray* (2009) 179 Cal.App.4th 75, 92 [“only those attorney fees and costs related to the special motion to strike, not the entire action, may be recovered under section 425.16, subdivision (c)”]; *City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 219.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re Sanbeck**
 Case No. PR2026-0094

Hearing Date: **June 5, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Yasmine Howerton’s motion for limited protective relief notwithstanding appeal and for appointment of special administrator is **DENIED**. (Prob. Code, §§ 1310, subd. (b), 8540, 8544.) First, petitioner has not shown that this Court can issue a protective order, pursuant to Probate Code section 1310(b), preventing certain actions in a related civil case. (Ps & As, pp. 6-7.) Second, petitioner failed to file a petition for letters of special administration on mandatory Judicial Council form DE-111. (Cal. Rules of Court, rule 1.31.) Finally, even if petitioner had made her request for appointment of special administrator on the required form, petitioner has not established that the executor named in decedent’s will is not qualified to act. (See Petition [filed April 13, 2026], ¶¶ 3g, 3f(2), Attachment 3f(2); see generally Howerton decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2022-1963

Hearing Date: **June 5, 2026** **Department Eight** **9:00 a.m.**

Motion for mandatory dismissal:

Defendant Ravi Mehta’s motion for mandatory dismissal is **DROPPED FROM CALENDAR AS MOOT**. On May 7, 2026, the clerk dismissed defendant Ravi Mehta without prejudice. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 [“Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights”].)

Motion for reconsideration:

On the Court’s own motion, plaintiff Xinyao Zhou’s motion for reconsideration is **CONTINUED to July 1, 2026**, at 9:00 a.m. in Department Eight.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2023-0312

Hearing Date: **June 5, 2026** **Department Eight** **9:00 a.m.**

Motion for leave to amend:

Defendant Hotel Winters' request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

Plaintiff Xinyao Zhou's motion for leave to file third amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324.) Plaintiff's supporting declaration does not specify: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; [and] (3) When the facts giving rise to the amended allegations were discovered." (Cal. Rules of Court, rule 3.1324(b); see Zhou decl.; see also *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for protective order:

Defendant Hotel Winters, LLC's motion for protective order regarding, and stay of, discovery is **GRANTED IN PART**. (Code Civ. Proc., §§ 2019.030, 2030.090, 2031.060, 2033.080.) The Court finds that, contrary to the representations made in plaintiff's declaration submitted under Code of Civil Procedure section 2030.050, plaintiff's 110 special interrogatories are unwarranted. (Code Civ. Proc., § 2030.090, subd. (b)(2); Dillon decl., ¶¶ 4, 16, Exhibit A; Zhou decl., ¶ 20.) However, the Court recognizes that this is a complex case and plaintiff's allegations span over multiple years. (See, e.g., Dillon decl., ¶ 4, Exhibit A [plaintiff's declaration of necessity, ¶ 8].) Therefore, the Court permits plaintiff to serve no more than 50 special interrogatories on defendant. (Code Civ. Proc., § 2030.090, subd. (b).)

As there is an operative complaint and the Court is denying plaintiff's motion for leave to amend, the Court declines to stay discovery. (Code Civ. Proc., § 2017.010; Dillon decl., ¶ 2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.